HH 788/25
XREF HCH 2547/24
HCHC 361/24
HCHC 405/24

FIRSTMILE APARTMENTS (LIVINGSTONE AVE) (PRIVATE) LIMITED
And
ROBIN TENDAI VELA
And
GAUDENCIA RUFARO VELA
Versus
ALSHAMS GLOBAL LTD
And
THE MINISTER OF JUSTICE, LEGAL & PARLIAMENTARY AFFAIRS N.O
And
JUDICIAL SERVICE COMMISSION

HIGH COURT OF ZIMBABWE
V. NDLOVU J
HARARE; 12 SEPTEMBER & 03 DECEMBER 2025

Opposed Application

E. Mubayiwa, for the applicant
L. Madhuku, for the 1st respondent
Ms V. Munyoro, for the 2nd respondent

V. NDLOVU J: This is an application for a Constitutional referral of an issue to the Constitutional Court in terms of section 175(4) of the Constitution of Zimbabwe 2013 as read with Rule 108(2) of the High Court Rules, 2021, and Rule 26 of the Constitutional Court Rules, 2025.

FACTUAL BACKGROUND

This application arises from two Summons cases, HCHC 405/24 and HCHC 361/24, in which the 1st respondent initiated provisional sentence proceedings against the applicants based on notarised acknowledgements of debts.

The applicants submitted that Rule 14 of the High Court Rules, which provides for the provisional sentence procedure, is unconstitutional. They contended that the procedure infringes upon their fundamental rights under section 69 of the Constitution of the Republic, specifically the right to a fair hearing. The applications were brought under the cover of cases **HCHC 500/24** *[HCHC 405/24]* and **HCH 2547/24** [HCHC 361/24], later consolidated and argued under *HCHC 500/24*.

RELIEF SOUGHT

The applicants sought the following relief;

1. *The request for referral of constitutional issues to the Constitutional Court be and is hereby granted.*
2. *Consequently, the constitutional question stated in Form No CCZ4 attached to the record of proceedings be and is hereby referred to the Constitutional Court for resolution.*
3. *The registrar of the High Court (Commercial Division) is directed to prepare and transmit the record of proceedings in this matter to the Constitutional Court within fourteen days.*
4. *The proceedings in this matter are stayed pending the determination of the Constitutional Court on the constitutional question referred above.*
5. *There shall be no order as to costs.*

APPLICANTS' CASE

The gravamen of their complaint is the Rules' requirement that one satisfy the judgment before arguing their case, effectively creating a *"pay now, argue later"* approach. They argued that this creates a barrier for a defendant who may have a *bona fide* defence but lacks the financial means to satisfy the judgment. They argued that this is particularly prejudicial where the defence needs to be proved by the leading of viva voce evidence to resolve factual disputes, a facility not provided for in the provisional sentence procedure. The applicants rely on a persuasive authority of the South African Constitutional Court, *Twee Jonge Gezellen and Another v Land and Agricultural Development Bank of South Africa* 2011 (3) SA 1 (CC).

They posit that their request for referral is neither frivolous nor vexatious, but instead raises a substantive and necessary question of law as the court must first determine whether Rule 14 of the High Court Rules, 2021, is constitutional before proceeding with the matter. They also argued that the content of the constitutional rights implicated must be taken seriously and stated that Rule 14 is unconstitutional for violating these rights. They further argued that the request for referral is earnest, as it concerns constitutional provisions relevant to the case. The applicants say that they are not abusing the court process but that their application is grounded in strong legal authority, as the constitutional provisions in Zimbabwe mirror those in South Africa, including the applicable provisional sentence, highlighting that both civil and constitutional litigation in Zimbabwe closely follow South African constitutional law, making the matter significant.

They argued that only the Constitutional Court has jurisdiction to decide the constitutional issue. At the same time, this court should only evaluate whether the request is frivolous or vexatious, and refer to Rule 26(1) (c) of the Constitutional Court Rules, 2025, stating that referrals fall exclusively within the jurisdiction of the Constitutional Court.
On costs, they submitted that costs should not arise in constitutional litigation.

RESPONDENTS' CASE

In opposition, the 1st and 2nd respondents argued that the application for referral is dilatory, frivolous, vexatious, and it fails the test in *Martin* v *AG & Another* 1993 (1) ZLR 153 (S). The respondents' primary legal defence is the doctrine of constitutional avoidance, submitting that the court should decline to engage the constitutional question because the matter is capable of resolution on non-constitutional grounds. Specifically, the respondents contend that the applicants have raised several defences on the merits, including the existence of a subsequent oral agreement and the illegality of the interest rate, which the court can and should adjudicate first.

The respondents argue that a referral is only necessary where the constitutional determination is indispensable for the disposition of the case. Furthermore, the respondents attack the constitutional question itself as being multifarious and lacking the requisite specificity. Finally, the respondents submit that the question has no reasonable prospects of success, as the constitutionality of the provisional sentence is well-established. They argue that there is no reasonable prospect that the Constitutional Court would depart from this position and find an infringement of section 69(3). They say the referral is thus an abuse of the court process, designed solely to frustrate them.

They argue that no constitutional issue has arisen in this matter and that the applicants cannot raise one. They further stated that for a constitutional matter to arise, it must be essential to the determination of the dispute. They highlighted that the core issue remains whether the applicants are liable, emphasising that their defences should be resolved on a non-constitutional basis. They argued that the provisional sentence procedure under Rule 14 does not present a constitutional issue. The respondents finally argued that a mere assertion of a constitutional issue does not, in itself, suffice for referral. The applicants' defences, including claims regarding the acknowledgement of debt, should be addressed outside the constitutional context, and the *Twee Jonge* case [supra] should be cited to support the constitutionality of provisional sentences, contrary to the applicants' claims. The applicants acknowledged their debt, rendering the current application merely a delay tactic and inherently frivolous.

ISSUES FOR DETERMINATION

a) Whether or not the request for referral of constitutional issues to the Constitutional Court should be granted?

APPLICATION OF THE LAW TO THE FACTS

Section 175(4) of the Constitution provides as follows,

"If a constitutional matter arises in any proceedings before a court, the person presiding over that court may and, if so requested by any party to the proceedings, must refer the matter to the Constitutional Court unless he or she considers the request is merely frivolous or vexatious."

The jurisprudence in this jurisdiction holds that there are two instances in which a court may refer a constitutional matter to the Constitutional Court.

> *[a] The court can mero moto refer a matter to the Constitutional Court, or*
> *[b] On application by any of the parties to the matter, the court can refer the matter to the Constitutional Court.*

Where an application for a referral has been made by a party to the proceedings, as is the case in this matter, the court has to decide whether the application is frivolous or vexatious.

The term frivolous was defined in *S v Cooper & Otrs* 1977 (3) SA 475 at 476D as follows;

> *".....the word 'frivolous' in its ordinary and natural meaning connotes an action characterised by lack of seriousness, as in the case of one which is manifestly insufficient. An action is in a legal sense 'frivolous or vexatious' when it is obviously unsustainable, manifestly groundless or utterly hopeless and without foundation."*

In *Martin v Attorney General & Anor* 1993 (1) ZLR 153 (S), GUBBAY CJ @ 157 defined the words frivolous or vexatious as follows;

> *"In the context of s 24(2) the word "frivolous" connotes, in its ordinary and natural meaning, the raising of a question marked by lack of seriousness: one inconsistent with logic and good sense, and clearly so groundless and devoid of merit that a prudent person could not possibly expect to obtain relief from it .The word "vexatious," in contra-distinction, is used in the sense of the question being put forward for the purpose of causing annoyance to the opposing party in the full appreciation that it cannot succeed; it is not raised bona fide and a referral would be to permit the opponent to be vexed under a form of legal process that was baseless."*

APPLICATION

In this case, the application for referral is by a party in provisional sentence proceedings. In terms of the Constitution in Section 175(4), the presiding Judge must decide whether or not the application is frivolous or vexatious, and when found not wanting in that regard, refer the matter to the Constitutional Court.

That the applicants have failed or neglected to pay the debts and have acknowledged as much is a common cause fact. The provisional sentence proceedings are qualified in nature. They are resorted to when there is an acknowledgement of debt by the debtor, which is signposted by the debtor's signature. A judge has to preside over the matter in the Unopposed Motion Roll. Where an opposition is filed, the matter does not proceed; it is rerouted to a trial process. In my view, there is no prejudice visited upon a debtor in the circumstances. The rights of the debtor are guarded and protected all the time, even though the judgment debtor has not settled the debt.

This court is in a perfect position to resolve the dispute between the parties without resorting to constitutional interpretation. This is an abuse of the court process. There is nothing unconstitutional about Rule 14 of the High Court Rules, 2021. No constitutional question has existed in this dispute, and none has arisen.

DISPOSITION

This application is frivolous and vexatious, and it should fail. The application for referral to the Constitutional Court is dismissed with costs.

ORDER

1. The application for constitutional referral of the matters *[HCHC 405/24] and HCHC 361/24]* is hereby dismissed with costs.
2. The parties in matters *HCHC 405/24* and *HCHC 361/24* shall reset the respective matters for their respective hearings.

V NDLOVU J.

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IEG Musimbe & Partners, applicants' legal practitioners
Atherstone & Cook, 1st respondent's legal practitioners
Civil Division of the Attorney General's Office, 2nd respondent's legal practitioners